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Calendar Line 1

Case Name: *Stoner et al. v. Contract Sweeping Services, LLC et al.*
Case No.: 23CV410973

This is class action arising from alleged wage and hour violations, brought by plaintiff Darcel Stoner ("Plaintiff") against defendant SCA of CA, LLC ("SCA" or "Defendant").[1] In the operative Second Amended Complaint ("SAC"), filed September 4, 2025, Plaintiff asserts causes of action for: (1) failure to pay prevailing wages; (2) failure to furnish accurate wage statements; (3) failure to provide wages when due; (4) unfair competition; and (5) violations of the Private Attorneys General Act.

Plaintiff's motion for class certification is now before the Court. Plaintiff moves to certify a class of street sweepers employed by Defendant SCA who performed street sweeping work in California under SCA's contracts with public entities. The Court has considered the moving, opposition, and reply papers, the supporting and supplemental declarations, the requests for judicial notice and evidentiary objections, the proposed trial plan and responses, and the arguments of counsel. As discussed below, the Court's tentative ruling is to GRANT the motion for class certification.

I. Background

Plaintiff's theory of recovery is that SCA's policy relating to the payment of street sweepers performing work pursuant to contracts with municipalities does not comply with California's Prevailing Wage Law (Lab. Code §§ 1720 et seq., "CPWL"). (Memorandum, p. 1:6–28.) Plaintiff contends that street-sweeping work should be characterized as within the CPWL's definition of "maintenance," thereby subjecting SCA to the requirement of paying prevailing wages for such work. SCA argues that street sweeper operators perform "janitorial or custodial services" as defined by the CPWL, exempting their work from the prevailing wage requirement. (Opposition, p. 7:1-25.)

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[1] The action was initially brought by plaintiffs Darcel Stoner and Peter White against defendants Contract Sweeping Services, Inc. ("CSS") and SCA. On August 28, 2023, the Court granted the plaintiffs' request to dismiss Plaintiff White's claims without prejudice. Plaintiff Stoner and CSS subsequently reached a settlement agreement as to the claims against CSS, and on May 21, 2026, the Court granted the motion for preliminary approval of that settlement.

The parties each set forth a summary of relevant facts. (Memorandum, pp. 2:17–7:9; Opposition, pp. 7:26–10:1.) In broad terms, SCA provides power street-sweeping services to municipalities and other public entities throughout California, as well as to private clients. Its street-sweeper operators drive specialized vehicles to remove litter, dirt, leaves, and debris from public streets, roadways, parking lots, and other driveable surfaces, and to haul and dispose of the collected debris. SCA's discovery responses and its own opposition confirm that the operators' job duties "are done in furtherance of the goal of cleaning the streets," and that SCA maintains a common California employee handbook and common timekeeping and pay practices.

SCA admits that it decides whether to pay prevailing wages on a given public contract based solely on whether the contract requires such payment, thus leaving the CPWL coverage determination to the awarding public entity. SCA does not independently assess statutory coverage and has never sought a coverage determination from the Department of Industrial Relations ("DIR"). According to Plaintiff's evidence, even where prevailing wages are paid, SCA pays them only for time when the sweeper's "brooms are spinning," and not for required travel from SCA's yards to the route, water refills, or debris dumping.

A Belaire-West notice list produced by SCA identifies 649 individuals employed as street sweepers in California during the relevant period. SCA has admitted that more than 100 of its California street sweepers performed work under public-entity contracts during the period.

II. Requests for Judicial Notice and Evidentiary Objections

A. Plaintiff's Request for Judicial Notice

Plaintiff requests judicial notice of Exhibits 1, 2, 3, 10, 13, 17, 18, 19, 20, and 21. SCA objects only to Exhibits 17 and 18.

The unopposed exhibits consist of pleadings, court orders, Secretary of State records, DIR determinations, and public council records. These are proper subjects of judicial notice as court records and official acts under Evidence Code sections 452(c), (d), and (h). The request is

GRANTED as to those exhibits, which the Court notices for their existence and legal effect but not for the truth of any reasonably disputed matter asserted within them.

As to Exhibit 17, the request is GRANTED IN PART and DENIED IN PART. This is a chart prepared by counsel summarizing public sweeping contracts said to have been obtained from public websites. The Court takes judicial notice of the existence of genuine public records to the extent properly before it but declines to take judicial notice of the truth of the contents of the litigation-prepared summary. The underlying terms of contracts not in the record are neither indisputable nor properly authenticated. As to Exhibit 18 (a report from the City of Malibu), the request is GRANTED as to the existence and public character of the official report and DENIED as to the truth of the statement attributed within it to SCA, which is hearsay not subject to judicial notice. (See Herrera v. Deutsche Bank Nat'l Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) These rulings do not affect the outcome of the motion, as the Court does not rely on the contested matter in Exhibits 17 or 18 to find any element of certification satisfied.

B. SCA's Evidence

In his reply, Plaintiff questions the weight of SCA's twenty-two declarations from current employees gathered under assertedly coercive conditions. The Court need not resolve any objection to admissibility. For purposes of certification, those declarations are consistent with Plaintiff's showing that the operators perform uniform cleaning work; they do not establish that the legal characterization of the work varies from contract to contract.

III. Legal Standard

California Code of Civil Procedure section 382 authorizes certification of a class "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court[.]"

> The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. A trial court ruling on a certification motion determines whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the

> maintenance of a class action would be advantageous to the judicial process and to the litigants.

(*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, internal punctuation and citations omitted.) The movant "has the burden to establish the existence of both an ascertainable class and a well-defined community of interest among class members." (*Ibid*.) The proponent must also show that class treatment is superior to alternatives and that the case is manageable. (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021; *Duran v. U.S. Bank, N.A.* (2014) 59 Cal.4th 1, 28-29.)

IV. Discussion

Plaintiff moves for certification of a class defined as: "all individuals employed by SCA and/or one of its subsidiaries during the period from February 8, 2019 through the present who have performed street sweeping work in California pursuant to SCA's contracts and/or subcontracts with public entities or municipalities." (Notice of Motion and Motion, p. 2:4–10.) As the moving party, Plaintiff has the burden to demonstrate the following: (A) an ascertainable class; (B) a well-defined community of interest; and (C) substantial benefits of class litigation. (*Brinker*, *supra*, 53 Cal.4th at p. 1021.)

A. Ascertainable Class

A class is ascertainable "when it is defined in terms of objective characteristics and common transactional facts that make the ultimate identification of class members possible when that identification becomes necessary." (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.)

Here the proposed class – street sweepers employed by SCA who performed work under SCA's public-entity contracts during the class period – is defined by objective, records-based criteria. SCA has already identified 649 street sweepers through the Belaire-West process and has admitted that more than 100 performed public-contract work. The class is ascertainable, and numerosity is satisfied. SCA does not contend otherwise.

B. Community of Interest

The “community of interest” requirement encompasses three factors: (1) predominant questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class. (*Sav-On*, *supra*, 34 Cal.4th at p. 326.)

1. Predominant Questions of Law or Fact

“As a general rule if the defendant’s liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.” (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916, citation omitted.) “In order to determine whether common questions of fact predominate the trial court must examine the issues framed by the pleadings and the law applicable to the causes of action alleged.” (*Ibid*.) The answer hinges on “whether the theory of recovery advanced by the proponents of certification is, as an analytical matter, likely to prove amendable to class treatment.” (*Sav-On*, *supra*, 34 Cal.4th at p. 327.)

i. Common Questions Predominate

The gravamen of this case is a single, uniform, and undisputed pay policy: SCA pays prevailing wages to its street sweepers only when a public contract expressly requires it, and not otherwise. SCA admits this practice. (Opposition, p. 9:17–19.) Plaintiff’s theory of liability is that this practice violates the CPWL because street sweeping performed under public contracts is covered “maintenance” work for which prevailing wages must be paid as a matter of statute, regardless of contract language. (Memorandum, pp. 9:21 – 10:2; *Lusardi Construction Co. v. Aubry* (1992) 1 Cal.4th 976, 987–988 [“[t]o construe the prevailing wage law as applicable only when the contractor and the public entity have included in the contract language … would encourage awarding bodies and contractors to legally circumvent the law, …. [and] would reduce the prevailing wage law to merely an advisory expression of the Legislature’s view”].)

Whether Plaintiff’s theory is correct presents a common legal question because it does not vary by employee, route, or contract, but instead turns on the nature of the street sweeping work and the proper construction of the CPWL and its implementing regulation (Cal. Code Regs., tit. 8, § 16000). The Court need not determine whether Plaintiff or SCA has the correct interpretation of the CPWL as applied to the facts in this case. Whichever way the question may ultimately be answered here, that answer will resolve a common legal question and central issue for the entire class. Therefore, there is a predominant common question rendering the case suitable for class treatment. (*Brinker*, *supra*, 53 Cal.4th at p. 1022; *Sav-On*, *supra*, 34 Cal.4th at p. 327.)

SCA's robust opposition is largely devoted to arguing the merits of CPWL coverage: that street sweeping is excluded "janitorial or custodial" service under section 16000; that the DIR coverage letters on which Plaintiff relies are non-binding or superseded; and that the Legislature's failure to enact Assembly Bill 1886 confirms that the CPWL does not reach street sweeping. (Opposition, pp. 12:6–23:24.) Defendant sets forth detailed and substantial arguments in support of its contention that Plaintiff cannot establish a common unlawful policy.

Plaintiff disputes each of Defendant's arguments. (Reply, pp. 2:13–10:28.) Plaintiff relies upon, among other things, the regulatory text, *Reliable Tree Experts v. Baker* (2011) 200 Cal.App.4th 785, 793–799, DIR determinations, and the recent decision in *Acito v. Lance Soares Inc.* (Super. Ct. L.A. County, 2025, No. 23STCV24858) 2025 LX 311893, 2025 Cal. Super. LEXIS 33769, at *5 [in a summary judgment decision, the court stated: "Plaintiffs' operation of the street sweepers pursuant to LSI's contract falls within the definition of 'maintenance' and 'public works.' [Citation.]")

The Court need not and does not resolve the parties' merits dispute today. The key factor for certification is that the dispute is common because it will be answered identically for every class member. Furthermore, the strength of SCA's merits presentation – asserting a common defense – tends to confirm, rather than defeat, the predominance of the common question. (*Brinker*, *supra*, 53 Cal.4th at pp. 1023-1024.)

ii. Palacio is Distinguishable

SCA argues, under *Palacio v. Jan & Gail's Care Homes, Inc.* (2015) 242 Cal.App.4th 1133, 1040–1041, that because its policy is lawful there is no common unlawful policy to support certification. (Opposition, pp. 20:12–21:6.) *Palacio* is distinguishable. There, the wage-order subdivision at issue indisputably did not apply to the employer, so the lawfulness of the policy was not reasonably subject to dispute. Here, by contrast, the lawfulness of SCA's policy depends on a genuinely contested question of statutory coverage, and one on which the DIR has issued coverage determinations favorable to Plaintiff's position and on which at least one California court has agreed with that position. To accept SCA's *Palacio* argument, the Court would have to decide, at the certification stage and in SCA's favor, the very merits question that pervades this case and would dispose of the entire action. *Brinker* does not require (and *Sav-On* counsels against) resolving a disputed and dispositive legal question against the class proponent on a procedural certification motion. The Court declines to do so here. SCA remains free to present its coverage defense by dispositive motion or at trial, where it may be resolved for the class as a whole.

iii. SCA's Asserted Individualized Issues Do Not Predominate

SCA contends that, even if some sweeping were covered, coverage and damages would require contract-by-contract, route-by-route, and employee-by-employee inquiries. (Opposition, pp. 21:7–23:9.) The Court is not persuaded that such inquiries predominate. SCA does not identify a single public sweeping contract under which the operators perform work materially different in nature from sweeping public streets. SCA's own evidence shows that every operator is responsible for street cleaning. The legal characterization of that work under Section 16000 does not change from one sweeping contract to another. SCA's reliance on the number of contracts distracts from the pertinent question on class certification: whether a common liability theory can be established with common proof. Here, it can, because of SCA's admitted uniform policy, its job descriptions and corporate testimony, and its centralized timekeeping and payroll records. (*Duran*, supra, 59 Cal.4th at pp. 28-30; *Sav-On*, *supra*, 34 Cal.4th at p. 333.)

Plaintiff's related theory – that SCA fails to pay prevailing wages for all time spent in execution of covered contracts, including required travel, water, and dumping time – is likewise governed by a common legal rule (*Morillion v. Royal Packing Co.* (2000) 22 Cal.4th 575) and SCA's uniform "brooms-spinning" practice. (Memorandum, p. 14:8–15; Reply, p. 10:3–28.) To the extent the application of that rule requires individualized computation, that is a damages question. The need for individualized proof of damages does not defeat predominance where liability is established by common proof. (*Brinker*, *supra*, 53 Cal.4th at p. 1022; *Bufil v. Dollar Financial Group, Inc.* (2008) 162 Cal.App.4th 1193, 1207.) Damages may be addressed through SCA's records in a later phase.

iv. Derivative Claims

The wage-statement (Lab. Code, § 226), unfair-competition (Bus. & Prof. Code, § 17200), and PAGA claims are derivative of the prevailing-wage claim, as the parties agree. Because they rise or fall with the common prevailing-wage question and depend on the same uniform policies and the same class-wide records, they are certifiable to the same extent as the principal claim.

2. Typicality

"The typicality requirement's purpose is to assure that the interest of the named representative aligns with the interests of the class." (*Martinez v. Joe's Crab Shack Holdings* (2014) 231 Cal.App.4th 362, 375, internal quotations and citations omitted.) Typicality requires that the representative's claims arise from the same course of conduct and be based on the same legal theory as those of the class. (*Classen v. Weller* (1983) 145 Cal.App.3d 27, 46.)

Here, Plaintiff worked as an SCA street sweeper and was subject to the same policy regarding prevailing wages (i.e., only when required by the municipal contract) as the class. (Memorandum, pp. 15:21–16:13.) He was also subject to the same limitation of prevailing-wage pay to "brooms-spinning" time, and he suffered the same asserted injury. SCA's contention that Plaintiff cannot represent sweepers who worked contracts he did not personally work is effectively a request to limit the class to Plaintiff's own contracts. Because Plaintiff's theory rests on the generic legal character of the street-sweeping work rather than the terms of any particular contract, typicality does not require contract-by-contract overlap. The Court previously declined to limit pre-certification discovery to Plaintiff's contracts, and it declines to limit the class on that basis now. Typicality is satisfied.

3. Adequacy of Representation

"Although the questions whether a plaintiff has claims typical of the class and will be able to adequately represent the class are related, they are not synonymous." (*Martinez*, *supra*, 231 Cal.App.4th at p. 375.) "The adequacy of representation component of the community of interest requirement for class certification comes into play when the party opposing certification brings forth evidence indicating widespread antagonism to the class suit." (*Ibid.*, quoting *Capitol People First v. State Dept. of Developmental Services* (2007) 155 Cal.App.4th 676, 696-697.) Adequacy turns on whether the representative's counsel is qualified and whether the representative has interests antagonistic to the class. (*McGhee v. Bank of America* (1976) 60 Cal.App.3d 442, 450.) Only a conflict that is fundamental and goes to the heart of the litigation defeats adequacy. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 238.)

Here, Counsel's qualifications are established and unchallenged. SCA raises two challenges to Plaintiff's adequacy. First, it argues that Plaintiff's separate race-discrimination action – in which he alleges he was denied prevailing-wage route assignments because of his race, while other employees received them – is irreconcilable with his claim to be typical of those employees. (Opposition, pp. 24:17 – 25:19.) The Court disagrees that this creates a disabling conflict. The discrimination action concerns the assignment of routes; this action concerns whether SCA lawfully pays for the sweeping work performed. Success in one does not require failure in the other, and the two claims are not antagonistic in any way that goes to the heart of the class claim. The authorities SCA cites (*Gau*, *Kurczi*, *Levias*) are distinguishable because they involved conflicts of a different order, such as settlement structures that traded off class recovery.[2] Moreover, the record reflects that Plaintiff filed a Notice of Related Cases identifying the discrimination action, undercutting SCA's suggestion of concealment. The Court further notes that a class settlement, if any, will require court approval and may not release or compromise absent members' claims without scrutiny under California Rules of Court, rule 3.769.

Second, SCA argues that Plaintiff is unfit because he was disciplined for clocking in before arriving on site and because his verified complaint stated he was "never" paid prevailing wages, when records show he sometimes was. (Opposition, pp. 25:20 – 26:11.) While these matters may bear on Plaintiff's credibility, they do not necessarily defeat adequacy. The class-liability question turns on the construction of the CPWL and SCA's admitted uniform policy and documentary records, not on Plaintiff's personal timekeeping. The authorities cited by SCA (*Savino*, *Kline*) involved credibility problems central to the liability theory; that is not the case here.[3] The Court finds Plaintiff to be an adequate class representative. SCA remains free to test Plaintiff's credibility through cross-examination on the merits.

C. Superiority and Manageability of Class Action

"[A] class action should not be certified unless substantial benefits accrue both to litigants and the courts… ." (*Basurco v. 21st Century Ins.* (2003) 108 Cal.App.4th 110, 120, internal quotation marks omitted.) The question is whether a class action would be superior to individual lawsuits. (*Ibid.*) "Thus, even if questions of law or fact predominate, the lack of superiority provides an alternative ground to deny class certification." (*Ibid.*) Generally, "a class action is proper where it provides small claimants with a method of obtaining redress and when numerous parties suffer injury of insufficient size to warrant individual action." (*Id.* at pp. 120-121, internal quotation marks omitted.)

SCA's opposition does not argue that individual litigation would be superior to class treatment. Given the size of the class, the modest individual stakes, and the predominance of a

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[2] *Gau v. Hillstone Rest. Grp.* (N.D. Cal. Mar. 31, 2022) 2022 U.S. Dist. LEXIS 60704; *Kurczi v. Eli Lilly & Co.* (N.D. Ohio Feb. 27, 1995) 160 F.R.D. 667; *Levias v. Pacific Maritime Ass'n* (W.D. Wash. Jan. 25, 2010) 2010 U.S. Dist. LEXIS 11495.

[3] *Savino v. Computer Credit, Inc.* (2d Cir. 1988) 164 F.3d 81, 86–87; *Kline v. Wolf* (2d Cir. 1983) 702 F.2d 400, 402–403.

common legal question concerning a uniform policy, the class device is plainly the superior means of adjudication. The alternative SCA proposes (limiting the class to Plaintiff's contracts) would invite a multiplicity of duplicative suits raising the identical policy and legal question, contrary to the purposes of the class device. (*Sav-On*, *supra*, 34 Cal.4th at pp. 339-340.)

On manageability, the Court has reviewed Plaintiff's proposed trial plan and SCA's responses. The plan contemplates a primarily legal liability phase based on SCA's uniform policy, job descriptions, and corporate testimony, with representative testimony, followed by a records-based damages phase, and proposes statistical sampling only "if necessary" for the wage-statement claim and only by agreement. That approach is materially different from the methodology prohibited in *Duran*, and it preserves SCA's ability to litigate its defenses. Because liability here is principally a legal question provable from common evidence, the case is manageable. Nevertheless, the Court will require Plaintiff to submit a supplemental and more detailed trial plan following merits discovery, as set forth below, and the parties may seek to revisit manageability before any class trial. (*Duran*, *supra*, 59 Cal.4th at pp. 31–32 [trial plans may evolve].)

V. Conclusion

For the reasons stated, the Court tentatively rules as follows:

1. Plaintiff's motion for class certification is GRANTED as to the Second Amended Complaint's causes of action for unpaid prevailing wages, inaccurate wage statements, and unfair competition, on behalf of the Class as defined below.
2. The Court certifies the following Class: "All individuals employed by SCA of CA, LLC and/or one of its subsidiaries during the period from February 8, 2019 through the present who performed street sweeping work in California pursuant to SCA's contracts and/or subcontracts with public entities and municipalities."
3. Plaintiff Darcel Stoner is appointed as representative of the Class.
4. Pursuant to California Rules of Court, rule 3.764, Pelton Graham LLP is appointed as Class Counsel.

5. The rulings on the parties' requests for judicial notice and evidentiary objections are as set forth in Section II above.
6. Plaintiff's proposed form and method of class notice are approved, subject to the parties meeting and conferring on a final notice. The notice shall be sent in English and Spanish. Within 30 days of entry of the order, SCA shall provide to the Class Administrator the Class list and pertinent data to the Class administrator. Plaintiff's counsel shall advance the costs of administration, and SCA shall bear the cost of compiling the Class data producing the Class list.
7. Within 60 days following the completion of merits discovery, or by such date otherwise set by the Court, Plaintiff shall file a supplemental trial plan that specifies the form of proof for each phase of trial and preserves SCA's right to litigate its affirmative defenses. Through further Case Management Conference(s), the Court will address the schedule for merits discovery and dispositive motions and will revisit manageability if necessary.
8. Nothing in this decision shall be construed to resolve the merits of whether the CPWL covers SCA's street sweeping, which is an issue that remains for resolution at summary adjudication or trial.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Valdez v. Christopher Ranch, LLC*
Case No.: 21CV392732

This is a representative action arising from alleged wage and hour violations. Plaintiff seeks penalties under the Private Attorneys General Act ("PAGA"), alleging failures to pay overtime and minimum wages, indemnify necessary business expenses, provide meal and rest periods, provide wage statements and maintain records, and timely pay wages after separation.

Plaintiff moves for approval of the PAGA settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

A trial court must review and approve any settlement of an action filed under the Private Attorneys General Act ("PAGA"). (Lab. Code, § 2699, subd. (s)(2).) The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529 (*Carrington*); *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Settlement Terms and Administration

A. Provisions of the Settlement

Plaintiff moves for approval of a proposed settlement made on behalf of a group of Aggrieved Employees, defined as:

> All persons who worked for Defendant in California as an hourly, non-exempt employee at any time during the applicable PAGA Release Period [December 24, 2020 to the earlier of October 8, 2025, or the date on which the Court

> approves the Settlement, or, at Defendant's election, a date prior to either of those dates to avoid triggering the escalator clause].

(Declaration of Kane Moon ("Moon Decl."), Ex. 1 ("Agreement"), ¶¶ 1(d), 1(x).)

Under the terms of the settlement, Defendant will pay a non-reversionary settlement amount of $849,000. (See Memorandum, pp. 3:5–5:16.) This amount includes attorneys' fees in the amount of $283,000 (one-third of the gross settlement amount), litigation costs of $21,104.02, a service award of $7,500, and settlement administration costs of up to $7,841. Of the remaining net settlement amount, 75 percent will be paid to the LWDA, and 25 percent (i.e., $132,388.75) will be distributed to the approximately 1,333 Aggrieved Employees based on the number of pay periods worked. Funds from checks that are not cashed within 180 days from the date of issuance will be transmitted to the Katherine and George Alexander Community Law Center as *cy pres* beneficiary. (Agreement, ¶ 7(d).) The Court approves the *cy pres* designation.

In exchange for the settlement, Aggrieved Employees are deemed to release Defendant and related people and entities from "all PAGA claims alleged in the operative Complaint or LWDA Notice, or which could have been alleged based on the facts, allegations, and legal theories raised in the operative Complaint or LWDA Notice, and which arose during the PAGA Release Period, as applicable to the specific claim." (Agreement, ¶¶ 1(bb), 5.1, 12.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends the PAGA settlement is fair and reasonable. (Memorandum, pp. 9:18–16:22; Moon Decl., ¶¶ 14–34.) Plaintiff's counsel states the parties participated in mediation with Brandon McKelvery, Esq., on August 5, 2025. (Moon Decl., ¶ 17.) Prior to mediation, Defendant provided Plaintiff with informal discovery, including Defendant's policies, data regarding the total number of Aggrieved Employees and pay periods, and an approximate 20 percent sampling of Aggrieved Employees' time and payroll records. (*Id.* at ¶ 15.) Plaintiff provides an analysis Defendant's exposure, assisted by expert analysis of the time and pay records. (*Id.* at ¶¶ 21–30.) According to this analysis, Defendant faces a total maximum exposure of $8,496,600 and a risk-adjusted exposure of $1,062,075. (*Id.* at ¶ 30.)

The gross settlement amount of $849,000 represents a recovery of approximately 10 percent of Defendant's estimated total maximum exposure and 80.9 percent of Defendant's risk-adjusted exposure. Given that trial courts can and do exercise their discretion to reduce the total PAGA penalties imposed, the Court finds that Plaintiff's counsel has adequately explained the rationale behind the settlement amount. (See *Carrington*, *supra*, 30 Cal.App.5th at p. 529.)

The Court has reviewed Plaintiff's written submissions in support of the settlement and is satisfied that the PAGA settlement is fair and may be approved.

C. Enhancement Award, Fees and Costs

Plaintiff seeks an enhancement award in the amount of $7,500. (Agreement, ¶¶ 1(n), 3(d).) The enhancement award request is not supported by either a declaration from Plaintiff or explanation or argument from counsel. Accordingly, the Court approves an enhancement award in the reduced amount of $5,000.

Plaintiff's counsel seeks attorney fees $283,000 (one third of the gross settlement amount). (Memorandum, pp. 16:23–21:24; Moon Decl. ¶¶ 51–69.) Plaintiff's counsel submits that the current lodestar in this action is $152,070, based upon a total of 202.4 hours billed at $450–950 per hour. (Moon Decl., ¶ 67.) This results in a multiplier of 1.86, which is within the range of multipliers California courts have found to be reasonable. The Court finds the requested fees to be reasonable as a percentage of the total recovery and therefore approves a fee award in the amount requested.

Plaintiff's counsel seeks reimbursement of $21,104,02 in litigation costs and provides evidence of costs incurred in that amount. (Memorandum, p. 21:25–28; Moon Decl., ¶ 70 and Ex. 5.) The Court finds the costs to be reasonable and approves reimbursement of costs in the amount requested.

Plaintiff also seeks up to $7,841.00 in settlement administration costs to Simpluris, Inc. (Memorandum, p. 22:1–8; Agreement, ¶ 3(e); Declaration of Michael Bui on behalf of

Simpluris, ¶ 9.) The Court appoints Simpluris, Inc., as settlement administrator and approves settlement administration costs up to $7,841, according to proof at the compliance hearing.

III. Conclusion

The Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

Plaintiff shall prepare the order.

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Calendar Line 3

Case Name: *Alvarez v. CEC Entertainment, LLC et al.*
Case No.: 23CV409445

This is a representative action arising from alleged wage and hour violations. Plaintiffs seek penalties under the Private Attorneys General Act ("PAGA"), alleging failures to pay overtime, pay regular rate wages, pay minimum wages, provide meal and rest periods, provide wage statements and maintain records, and timely pay wages during employment and after separation.

Plaintiffs move for approval of the PAGA settlement reached by the parties. The motion is unopposed. As discussed below, the Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

A trial court must review and approve any settlement of an action filed under the Private Attorneys General Act ("PAGA"). (Lab. Code, § 2699, subd. (s)(2).) The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Settlement Terms and Administration

A. Provisions of the Settlement

Plaintiffs move for approval of a proposed settlement made on behalf of a group of Aggrieved Employees, defined as:

> All current and former hourly paid, non-exempt California employees of Defendants who worked at any time during the Settlement Period [October 30, 2021 through May 14, 2025].

(Declaration of Raul Perez ("Perez Decl."), Ex. 1 ("Agreement"), ¶¶ 1.2, 1.14.)

Under the terms of the settlement, Defendant will pay a gross settlement amount of $1,755,000. (See Memorandum, pp. 10:16–12:19; Agreement, ¶¶ 27–34.) This amount includes attorney fees in the amount of $585,000 (one third of the gross settlement amount), litigation costs up to $30,000, service awards of $1,500 to each of the three Plaintiffs named in the First Amended Complaint, and settlement administration costs up to $20,000. Of the remaining net settlement amount, 75 percent will be paid to the LWDA, and 25 percent will be distributed to the approximately 8,297 Aggrieved Employees based on the number of pay periods worked. Funds from checks that are not cashed within 180 days from the date of issuance will be sent to the State of California Unclaimed Property Fund in the name of the Aggrieved Employee whose check went uncashed.

The Agreement further provides that Defendants will pay Plaintiffs $15,000 each as General Release Payments, to be paid separately from and in addition to the gross settlement amount, for general releases of all claims Plaintiffs may have arising out of their employment. (Agreement, ¶ 32.) "The Parties agree to memorialize the terms and conditions pertaining to the General Release Payments in a separate agreement between Defendants and each of the three Plaintiffs." (*Ibid.*)

In exchange for the settlement, Aggrieved Employees are deemed to release Defendant and related people and entities from "any and all claims for PAGA civil penalties under the California Labor Code, Wage Orders, regulations, and/or other provisions of law alleged or could have been alleged to have been violated in the Actions with respect to Aggrieved Employees based on the facts alleged in the Actions during the Settlement Period." (Agreement, ¶¶ 11, 13, 33.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiffs contend the PAGA settlement is fair and reasonable. (Memorandum, pp. 12:20–18:3; Perez Decl., ¶¶ 4–10; Declaration of Paolo Policastro ("Policastro Decl."), ¶ 24.) Plaintiffs' counsel explains that the parties participated in mediation with Daniel Turner, Esq., on March 14, 2025. (Perez Decl., ¶ 4.) Defendant provided Plaintiffs with discovery, including the relevant written policies and procedures, a list of non-exempt hourly positions, and random samples of time and pay records. (*Id.* at ¶ 9.) Plaintiffs also retained private investigators to document workplace conditions at 21 different locations throughout California. (*Ibid.*) Based on their investigation, Plaintiffs provide an analysis of Defendant's exposure, according to which the Defendant faces a total maximum exposure of $129,756,600 and a risk-adjusted exposure of $12,023,970. (Memorandum, pp. 14:6 –14:18.)

The gross settlement amount of $1,755,000 represents a recovery of approximately 1.4 percent of Defendant's estimated total maximum exposure and 14.6 percent of Defendant's risk-adjusted exposure. Given that trial courts can and do exercise their discretion to reduce the total PAGA penalties imposed, the Court finds that Plaintiffs' counsel has adequately explained the rationale behind the settlement amount. (See *Carrington*, *supra*, 30 Cal.App.5th at p. 529.)

The Court has reviewed Plaintiffs' written submissions in support of the settlement and is satisfied that the PAGA settlement is fair and may be approved.

C. Incentive Award, Fees and Costs

Plaintiffs seek service awards in the amount of $1,500 each ($4,500 total). (Memorandum, p. 24:10–25:26.) As referenced above, the Agreement provides the Defendants will pay each of the three Plaintiffs a $15,000 amount in exchange for a general release of all claims, and these payments will not come from the gross settlement amount. The Court is satisfied that the service awards are justified and the amounts requested are reasonable.

Plaintiffs' counsel seeks attorney fees $585,000 (one third of the gross settlement amount). (Memorandum, pp. 18:4–23:20; Perez Decl. ¶¶ 20–24; Policastro Decl., ¶¶ 12-22.) Plaintiffs' counsel submits that the current lodestar in this action is $408,775, based on a total of 521.6 hours billed at rates from $625–1,050. (Memorandum, p. 20:18–25.) This results in a multiplier of 1.43, which is within the general range of multipliers that California courts have found to be reasonable. The Court finds the requested fees to be reasonable as a percentage of the total recovery and therefore approves a fee award in the amount requested.

Plaintiffs' counsel also requests reimbursement of litigation costs in the total amount of $23,049.02 and provides evidence of costs incurred in that amount. (Memorandum, pp. 23:21–24:9; Perez Decl., ¶ 25; Policastro Decl., ¶ 23.) The Court finds the costs to be reasonable and approves reimbursement of costs in the amount requested.

Plaintiffs also seek up to $10,000 in settlement administration costs to ILYM Group, Inc. (Memorandum, p. 8:20–21; Agreement, ¶ 34.) The Court appoints ILYM Group, Inc. as settlement administrator and approves settlement administration costs up to $10,000, according to proof at the compliance hearing.

III. Conclusion

The Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

Plaintiffs shall prepare the order.

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Calendar Line 4

Case Name: *Garcia v. SourceOne Building Maintenance, Inc.*
Case No.: 23CV423652

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Now before the Court is Plaintiff's unopposed motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc*. (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Provisions of the Settlement

This case has been settled on behalf of the following class:

> [All] individuals who are or were employed by Defendant as non-exempt or hourly-paid employees, who worked at least one shift in California during the Class Period [October 3, 2019 to April 29, 2025].

(Declaration of Hengameh S. Safaei in support of Motion for Preliminary Approval, Ex. 1 ("Agreement"), ¶¶ 1.6, 1.12.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: "[all] individuals who are or were employed by Defendant as non-exempt or hourly-paid employees, who worked at least one shift in California from September 25, 2022, through the date of Preliminary Approval of the Settlement." (*Id.* at ¶ 1.5.)

Defendant will pay a gross settlement amount of $419,500, and this amount includes: attorney fees of up to one-third of the gross settlement amount ($139,833.33); litigation costs not to exceed $16,500; a PAGA allocation of $40,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to PAGA Employees as individual PAGA payments); a service payment of $5,000 to Plaintiff; and settlement administration costs up to $9,000. (Motion, p. 9; Agreement, ¶¶ 1,23, 3.1-3.2)

The net settlement amount will be distributed to participating class members on a pro-rata basis. (Agreement, ¶ 3.2.4.) The Agreement provides that ILYM Group, Inc. ("ILYM") will serve as settlement administrator. (*Id.* at ¶ 1.2.) The Court approves and appoints ILYM as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted to Legal Aid at Work, Worker's Rights Clinic. (*Id.* at ¶ 4.3.3) The Court approves the *cy pres* designation.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from "all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the operative First Amended Complaint and PAGA Notice…." (Agreement, ¶ 6.2.) Aggrieved Employees will be deemed to release Defendant and related entities and persons "from all claims for PAGA penalties that were alleged or reasonably could have been alleged, based on the facts stated in the operative First Amended

Complaint… .” (*Id.* at ¶ 6.3.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff’s motion for preliminary approval, the Court approved ILYM as settlement administrator. On February 11, 2026, Defendant delivered class data to ILYM, with 522 Class Members, 318 of whom are Aggrieved Employees. (Declaration of Garvin Brown of ILYM (“Brown Decl.”) ¶ 5.) ILYM determined that the Agreement’s escalator clause was triggered such that the gross settlement amount increased by $26,819.07, from the original amount of $419,500 to $446,319.09. (*Id.* at ¶ 7.) On March 3, 2026, ILYM mailed Class Notices to the 522 individuals on the Class List. (*Id.* at ¶ 8 and Ex. A.)

The deadline to request an exclusion, submit a written objection, or submit a dispute was April 17, 2026. (Brown Decl., ¶¶ 12–14.) As of the date of Mr. Brown’s declaration, April 29, 2026, ILYM had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Ibid*.) ILYM estimates the average individual payment will be approximately $435.43. (*Id.* at ¶ 18.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, it finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of $5,000. Plaintiff has provided a declaration detailing her participation in this litigation as well as the risks she undertook by being named as a plaintiff. She explains that she has spent approximately 35 hours on activities such as gathering documents and communicating with counsel. Having found that a service award is justified and the amount requested is reasonable, the Court approves the service award in the amount requested.

Plaintiff's counsel seeks an attorney fee award of $139,833.33 (one third of the gross settlement amount). (Memorandum, pp. 15:1–22:4; Declaration of Hengameh S. Safaei in Support of Motion for Final Approval ("Safaei Decl.") ¶¶ 28–45.) Plaintiff's counsel represents that the lodestar for this action is $164,000, based on 205 hours billed at $800 per hour. (Kim Decl., ¶ 37.) This results in a negative multiplier. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of $139,833.33

Plaintiff's counsel requests reimbursement of litigation costs in the amount of $14,376.07 and they provide an itemized list in support. (Memorandum, p. 22:5–10; Safaei Decl., ¶¶ 43–45 and Ex. 5.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of $8,750. (Brown Decl., ¶ 19.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

Calendar Line 5

Case Name: *Bobadilla v. Loan Factory, Inc.*
Case No.: 24CV432129

This is a class action for misappropriation of likeness brought by plaintiff Derek Daniel Bobadilla against defendant Loan Factory, Inc. ("Loan Factory" or "Defendant"). The complaint asserts causes of action for: (1) violation of Civil Code section 3344 (unauthorized commercial use of name, voice, signature, photograph or likeness); (2) common law misappropriation of name and likeness; (3) violation of Business and Professions Code section 17200 et seq. (unfair competition); and (4) unjust enrichment.

Plaintiff's motion for class certification is before the Court. Plaintiff moves to certify a class of loan officers whose names and images were used by Loan Factory, Inc. as part of its "Find a Loan Officer" webpage, without their consent. The Court has considered the moving, opposition, and reply papers, the supporting and supplemental declarations, Plaintiff's request for judicial notice, Defendant's evidentiary objections, and the arguments of counsel. As discussed below, the Court's tentative ruling is to GRANT the motion for class certification.

I. Background

Plaintiff sets forth its asserted background facts in support of his motion. (Memorandum, pp. 1:15–6:18.) Loan Factory, Inc. is a licensed California mortgage brokerage. Its website includes a "Find a Loan Officer" feature that displays individual profile pages, each bearing a loan officer's name, photograph, and Nationwide Multistate Licensing System (NMLS) identification number. Plaintiff alleges that Loan Factory populated these pages with the profiles of at least 7,490 California-licensed loan officers drawn from publicly available licensing records, none of whom was employed by or affiliated with Loan Factory and none of whom consented to the use. Plaintiff contends the purpose and effect of this practice was to inflate the apparent size of Loan Factory's sales force and to harvest search-engine traffic from consumers looking for particular officers by name, diverting that traffic to Loan Factory.

Plaintiff Bobadilla is a California-licensed mortgage loan officer, and he alleges he discovered his name and photograph on Loan Factory's website without his consent. Another loan officer, Alan Eidinger, attests to a virtually identical experience in that he searched his own name on Google and found his Loan Factory profile ranked above his own website. Loan Factory has produced a list identifying at least 7,490 putative class members by name and contact information.

Defendant Loan Factory disputes the factual basis of the motion. (Opposition, pp. 10:22–15:10.) It contends that the profile pages were dynamically generated rather than static; that there is no reliable proof that consumers ever viewed the individual profiles or that search engines crawled and indexed them; and that much of the apparent web traffic reflects non-human "bot" activity, including sessions of zero-to-two seconds' duration and sessions originating outside the United States. Loan Factory further contends the officers' circumstances differ because some may have consented, some may have benefited from the exposure, and some suffered no harm. Loan Factory argues that neither liability nor injury can be resolved on a class-wide basis.

The parties have submitted competing expert declarations on the search-engine indexing questions: Bill Hartzer for Plaintiff; Dr. McDonald for Loan Factory. Plaintiff has also submitted an expert declaration (Kevin Herzberg) on the damages issue.

II. Requests for Judicial Notice and Evidentiary Objections

A. Plaintiff's Request for Judicial Notice

Plaintiff seeks judicial notice of two items pertaining to the legislative history of Civil Code section 3344: Exhibit 18 (the 1971 enactment: Statutes 1971, Chapter 1595, Assembly Bill 826); and Exhibit 19 (the 1984 amendment: Statutes 1984, Chapter 1704, Senate Bill 613). Defendant does not oppose the request.

These are proper subjects of judicial notice under Evidence Code section 452(c) as official acts of the Legislature. (*City of Rocklin v. Legacy Family Adventures-Rocklin, LLC* (2022) 86 Cal.App.5th 713, 732–733, fn. 8; *X.M. v. Superior Court* (2021) 68 Cal.App.5th 1014, 1026, fn. 3; *Miller v. Collectors Universe, Inc.* (2008) 159 Cal.App.4th 988, 999, 1002–1004.) Nevertheless, while the Court takes judicial notice of the existence and content of these official legislative-history documents, it does not take judicial notice of the truth of any disputed factual assertions, hearsay statements, or argumentative characterizations contain therein, and the weight given to them regarding legislative intent remains for the Court. (See *Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 30; *Rose v. County of San Benito* (2022) 77 Cal.App.5th 688, 717–718.)

Accordingly, Plaintiff's request for judicial notice is GRANTED, subject to the limitations set forth above.

B. Defendant's Objections to Class-Certification Evidence (Nos. 1–20)

Defendant interposes various objections to the following declarations submitted by Plaintiff in support of the motion for class certification: Declaration of Douglas L. Johnson ("Johnson Decl.") (Nos. 1 –3); Declaration of Alan Eidinger ("Eidinger Decl.") (Nos. 4–6); Declaration of Bill Hartzer ("Hartzer Decl.") (Nos. 7–8); Declaration of Derek Bobadilla ("Bobadilla Decl.") (Nos. 9–13); Declaration of Kevin Herzberg ("Herzberg Decl.") (Nos. 14–20).

1. Hearsay (Nos. 1 –3, 10)

These objections are OVERRULED IN PART and SUSTAINED IN PART. They are OVERRULED to the extent that the Court considers the subject statements as part of its class-certification analysis as evidence that the challenged conduct was experienced uniformly across the putative class. They are SUSTAINED to the extent the statements in question are offered for their truth, which would be inadmissible hearsay, and the Court does not rely on them for that purpose.

2. Foundation/Personal Knowledge (Nos. 4–6, 9, 11–13)

These objections are OVERRULED IN PART and SUSTAINED IN PART. They are OVERRULED to the extent that the challenged statements describe what the declarant personally observed and are within the declarant's own professional experience. They are SUSTAINED to the extent that they characterize Loan Factory's knowledge and intent and assert specific licensing or regulatory consequences (Eidinger Decl., ¶¶ 5, 7; Bobadilla Decl., ¶¶ 6–7.)

3. Expert Basis and Qualification (Nos. 7–8, 14)

These objections are OVERRULED. Hartzer is adequately qualified in search-engine optimization and web analytics, and Herzberg is adequately qualified in damages calculations and methodology. The asserted deficiencies in the basis for the opinions go to their weight rather than their admissibility.

4. Improper Legal Opinion (Nos. 15–20)

These objections are OVERRULED IN PART and SUSTAINED IN PART. They are OVERRULED to the extent the challenged paragraphs of the Herzberg Declaration describe a fair-market value and unjust-enrichment damages methodology, which the Court considers solely as to question of whether damages may be calculated on a class-wide basis. They are SUSTAINED to the extent of Herzberg's opinions on ultimate legal conclusions, which are reserved to the Court, including: that Loan Factory was required to pay fair market value; that class members suffered a common injury, and that Loan Factory's conduct exposed class members to violations of the law.

C. Objections to the Supplemental Declaration of Bill Hartzer (Nos. 1–5)

Loan Factory objects to five paragraphs of the Supplemental Declaration of Bill Hartzer ("Supp. Hartzer Decl."), submitted with the reply, on the grounds of foundation, lack of personal knowledge, insufficient basis, and as a "sham" declaration under *Vatalaro v. County of Sacramento* (2022) 79 Cal.App.5th 367, 381, and *Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1087–1089.

The Court is not persuaded. The supplemental declaration is proper reply evidence because it responds directly to contentions Loan Factory made in opposition, namely, that the profile pages were dynamically generated, that there is no proof consumers viewed them, and that the traffic was bot driven. New evidence offered in reply is permissible when it fills in gaps created by the opposition. (*RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co., Inc.* (2020) 56 Cal.App.5th 413, 431; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538.) Further, the sham-affidavit doctrine does not apply here because Hartzer is a non-party expert, this not a summary judgment motion, and the supplemental declaration does not directly contradict his deposition testimony but rather draws further inferences from analytics data. The Court appropriately discounts Hartzer's opinions based on his testimony that Google's algorithms are unknown, finding that such limitations go to the weight rather than the admissibility of his opinions.

Accordingly, the objections are OVERRULED.

III. Legal Standard

California Code of Civil Procedure section 382 authorizes certification of a class "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court … ."

> The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. A trial court ruling on a certification motion determines whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.

(*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326 (*Sav-On*), internal punctuation and citations omitted.) The movant "has the burden to establish the existence of both an ascertainable class and a well-defined community of interest among class members." (*Ibid*.)

IV. Discussion

Plaintiff moves to certify a class defined as: "All California-licensed loan officers whose names and images were used by Loan Factory, as part of its "Find a Loan Officer" webpage, without their consent." (Notice of Motion and Motion, p. 1.)

As the moving party, Plaintiff has the burden to demonstrate the following: (A) an ascertainable class; (B) a well-defined community of interest; and (C) substantial benefits of class litigation. (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

A. Ascertainable Class

A class is ascertainable "when it is defined in terms of objective characteristics and common transactional facts that make the ultimate identification of class members possible when that identification becomes necessary." (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.) Plaintiff contends the proposed class is objectively ascertainable and sufficiently numerous. (Memorandum, pp. 7:16 –8:14.) Loan Factory argues the class is not ascertainable or sufficiently numerous because there are too many variations regarding whether and under what circumstances the profile for any loan officer was displayed on its website. (Opposition, pp. 21:27 –22:24.)

Here, the proposed class is ascertainable because it is defined by objective criteria and membership can be determined from Loan Factory's own records. Indeed, Loan Factory does not dispute that it has already produced a list of at least 7,490 loan officers. This is plainly a numerous amount, and joinder of so many individuals would be impracticable. The "without their consent" qualifier does not render the class an impermissible "fail-safe" or require a merits determination to define membership. The class is defined by the objective criteria of the use of each officer's name and image on the page. Consent is an affirmative fact capable of proof, and there is no evidence that any unaffiliated officers consented to the use of their name and image on Loan Factory's website. While it is possible that a small number of officers may have consented, that is a question for the merits or for claims administration rather than an obstacle to the ascertainability requirement. (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 915 ["ascertainability can better be achieved by defining the class in terms of objective characteristics and common transactional facts making the ultimate identification of class members possible when that identification becomes necessary. [¶] …A class is still ascertainable even if the definition pleads ultimate facts or conclusions of law"].)

Accordingly, Plaintiff meets his burden as to ascertainability.

B. Community of Interest

The "community of interest" requirement encompasses three factors: (1) predominant questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class. (*Sav-On*, *supra*, 34 Cal.4th at p. 326.)

1. Predominant Questions of Law or Fact

"As a general rule if the defendant's liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages." (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916, citation omitted.) "In order to determine whether common questions of fact predominate the trial court must examine the issues framed by the pleadings and the law applicable to the causes of action alleged." (*Ibid.*) The answer hinges on "whether the theory of recovery advanced by the proponents of certification is, as an analytical matter, likely to prove amenable to class treatment." (*Sav-On*, *supra*, 34 Cal.4th at p. 327.)

Plaintiff contends common questions of law and fact predominate because there is common evidence that Loan Factory intended to use the class members' identities uniformly and commercially and because the class members were injured in similar manner. (Memorandum, pp. 8:15–18:19.) Loan Factory argues that common questions of law and fact do not predominate because individual issues predominate regarding proof of commercial use and proof of injury. (Opposition, pp. 15:26–21:26.)

i. Commercial Use

Plaintiff alleges both statutory misappropriation (Civil Code, § 3344) and misappropriation at common law (*Orthopedic Systems, Inc. v. Schlein* (2011) 202 Cal.App.4th 529, 544). The central "commercial use" question is whether Loan Factory's alleged misappropriation is common to every class member and answerable with common proof. Plaintiff contends there is common evidence that Loan Factory intended to use class members' identities uniformly and commercially. (Memorandum, pp. 9:11–10:18.) Plaintiff contends that Loan Factory and its expert have admitted that the motive behind the "Find a Loan Officer" feature was to use class members' identities to help Loan Factory improve its search-engine optimization, and further, that such efforts were successful.

Loan Factory contends there are individualized issues as to whether commercial use exists. (Opposition, pp. 6:27–7:22.) It argues that Plaintiff has not provided any evidence that the profiles contained false statements, teasers about other products, comparative advertising, or that the "Find a Loan Officer" was the primary means by which customers made purchasing decisions. Loan Factory contends that it cannot be liable under a commercial use theory merely for housing a database of public professional profile information that potentially could be accessed even if the profile were never displayed to a consumer or user.

Here, the commercial use question is a common question yielding a common answer because Loan Factory used all the profiles in the same way, for the same purpose, on the same part of the same website, and pursuant to the same course of conduct. Whether the use of the Loan Factory's website resulted in some profiles being "displayed" more than others is not material to this question because Loan Factory published the profiles uniformly when its "Find a Loan Officer" website went live. As the court observed in *Nolen v. PeopleConnect, Inc.* (N.D. Cal., June 30, 2023) 2023 U.S. Dist. LEXIS 113630 at *8: "The internet is not Schrödinger's cat, only existing once it has been seen. Webpages do not rest up in the ether until a viewer's click jolts them into being; rather, a webpage is published once it is publicly accessible. [Citations.]" Whether Loan Factory's uniform course of conduct constitutes an actionable commercial use will be answered identically for all members.

Loan Factory's emphasis on individualized issues, including the precise visibility of any given profile, the extent of any class member's awareness or subjective harm, or minor variations in commercial impact, do not defeat predominance. To the extent such issues are not subsumed within the common liability determination, they are suitable for individualized damages proceedings after class-wide liability is established. The commercial character of the use is fixed by Loan Factory's purpose and the nature of the website are both issues common to the class. The parties' debate regarding online-directory authorities (e.g., *Ambrozewicz v.*

6Sense Insights, Inc. (N.D. Cal. 2025) 804 F.Supp.3d 1026; *Ridgeway v. Spokeo, Inc.* (C.D. Cal. 2023) 697 F.Supp.3d 979; *Vrdolyak v. Avvo, Inc.* (N.D. Ill. 2016) 206 F.Supp.3d 1384) sets forth a common issue on the merits and does not convert the central liability question into an individualized one.

ii. Injury

Loan Factory contends that individual issues predominate regarding proof of injury. (Opposition, pp. 19:4–20:23.) It argues that both statutory and common law misappropriation theories require proof of injury, and that any such injury is inherently individualized, and proof will require mini trials because some officers may have benefited from the exposure, some may have suffered reputational harm, and some may have suffered no harm. Loan Factory points to a number of authorities in arguing that injury under Civil Code section 3344 must be shown on a person-by-person basis, including the following: *Miller*, *supra*, 159 Cal.App.4th 988, 1002; *Block v. Major League Baseball* (1998) 65 Cal.App.4th 538; *Alberghetti v. Corbis Corp.* (C.D. Cal. 2010) 263 F.R.D. 571; *Bennett v. Regents of University of California* (2005) 133 Cal.App.4th 347; *In re Vioxx Class Cases* (2009) 180 Cal.App.4th 116; *Fairfield v. American Photocopy Equipment Co.* (1955) 138 Cal.App.2d 82, 86–87; *Cohen v. Facebook, Inc.* (N.D. Cal. 2011) 798 F.Supp.2d 1090; and *Perkins v. LinkedIn Corp.* (N.D. Cal. 2014) 53 F.Supp.3d 1222.

According to Loan Factory, it is well established by both California and federal authority that emotional distress claims are individualized and incompatible with class certification. (Opposition, pp. 20:5–21:26.) Loan Factory states that California courts have found that the injury underlying a Section 3344 claim premised on emotional or psychological harm is mental and subjective by its nature. Loan factory also argues the harm being alleged by Plaintiff with respect to potential licensure violations is speculative. Loan Factory maintains that Plaintiff cannot show through common facts and law that the class members suffered injury.

Plaintiff sets forth three theories in arguing that he has met his burden of showing that injury is susceptible to common proof. (Memorandum, pp. 10:19–18:19.) First, Plaintiff argues that Section 3344 entitled a prevailing plaintiff to the greater of actual damages or a statutory minimum of $750 and that emotional injury is not required to recovery such statutory damages. (*Id.* at pp. 10:19–12:7.) Second, Plaintiff sets forth a theory that damages are recoverable based on the class members' loss of the right to control the use of their identity. (*Id.* at pp. 12:2–15:1.) Finally, Plaintiff articulates an unjust-enrichment theory, arguing that the value that Loan Factory derived from using the officers' identities can be calculated classwide through a common methodology. (*Id.* at pp. 16:2–18:14.)

Here, the Court finds Plaintiff's arguments more persuasive. Regarding Plaintiff's first theory, if Loan Factory is liable under section 3344, every class member is entitled to at least $750 without individualized proof of actual harm, and that liability turns on the common course of conduct. Authorities holding that such injury is "individualized" largely concern actual or emotional damages, not the statutory floor; the statutory minimum exists to fill the gap for noncelebrity plaintiffs whose names lack established market value and whose harm is difficult to quantify. (*Fraley v. Facebook, Inc.* (N.D. Cal. 2011) 830 F.Supp.2d 785, 807 [section 3344 "can be read to presume" injury, particularly as to the statutory minimum]; *Miller*, *supra*, 159 Cal.App.4th at pp. 995, 1002.) Loan Factory's application of *Miller* is misguided. *Miller* limited a single plaintiff to a single $750 award where his one name appeared on many certificates – a single-cause-of-action holding. Here each of the 7,490 members is a different person whose distinct identity was used; *Miller* supports rather than defeats common treatment here because it confirms that each class member holds a section 3344 claim. Regarding Plaintiff's loss-of-control and unjust-enrichment theories, whether these theories ultimately prevail is a merits question not resolved here.

In sum, the common questions identified by the parties with respect to the instant motion include: (1) whether Loan Factory engaged in a uniform practice of "scraping" and using class members' names and images on its website; (2) whether such use was "knowing" and without consent; (3) whether such use was for purposes of advertising, selling, or soliciting the purchase of Loan Factory's service ("commercial use"); and (4) whether and how injury may be established on class-wide basis. For the reasons discussed above, the Court finds that these questions are common to the entire class and can be resolved through class-wide argument and evidence.

2. Typicality and Adequacy of Representation

"The typicality requirement's purpose is to assure that the interest of the named representative aligns with the interests of the class." (*Martinez v. Joe's Crab Shack Holdings* (2014) 231 Cal.App.4th 362, 375, internal quotations and citations omitted.) "Although the questions whether a plaintiff has claims typical of the class and will be able to adequately represent the class are related, they are not synonymous." (*Ibid*.) "The adequacy of representation component of the community of interest requirement for class certification comes into play when the party opposing certification brings forth evidence indicating widespread antagonism to the class suit." (*Ibid.*, internal quotation omitted.)

Plaintiff attests he is willing and able to prosecute this action, and Plaintiff's attorneys maintain they have adequate experience. (Memorandum, pp. 18:20–19:21.) Plaintiff asserts that there is no meaningful dispute that his claims are typical of the class and that Loan Factory has not raised a conflict or unique defense that would challenge typicality or adequacy.

In opposition, Loan Factory contends that Plaintiff is not typical of the class or adequate because discovery has shown that he was "drafted" by his employer to by class representative by his employer, NEXA, a Loan Factory competitor. (Opposition, pp. 22:25–24:2.) Loan Factory states that the class action is part of an anti-competitive effort by NEXA and that Plaintiff faces questions as to whether he is informed about the case and adequately representing other class members. Loan Factory further argues that adequacy is not met because Plaintiff's counsel may be more interested in harming Loan Factory than in obtaining the best relief for the class. (*Id.* at pp. 10:5–15.)

Here, Plaintiff Bobadilla's claim is typical of the proposed class. His name and photograph were used on the same pages, in the same manner, for the same purpose, as those of the other members, and he asserts the same legal theories. Typicality requires only that the representative's claims arise from the same course of conduct and rest on the same legal theory. It does not require identical claims or damages. Loan Factory's contention that Bobadilla is atypical because a competing brokerage encouraged his suit, or because his individual damages differ, does not defeat typicality: the source of a plaintiff's motivation to sue does not change whether his legal claim is typical, and differences in damages is not a bar to certification. Loan Factory raises stronger arguments regarding adequacy: that NEXA is controlling the litigation and Plaintiff is disengaged from and unfamiliar with the case. Nevertheless, there is no evidence that NEXA is controlling the litigation or that its interests diverge in any from the class's interests in maximizing recovery. Plaintiff is not required to be closely involved with the litigation, and Loan Factory raises no serious concern that Plaintiff has interests antagonistic to the class.

Accordingly, the typicality and adequacy factors are satisfied.

C. Superiority of Class Treatment

"[A] class action should not be certified unless substantial benefits accrue both to litigants and the courts… ." (*Basurco v. 21st Century Ins.* (2003) 108 Cal.App.4th 110, 120, internal quotation marks omitted.) The question is whether a class action would be superior to individual lawsuits. (*Ibid.*) "Thus, even if questions of law or fact predominate, the lack of superiority provides an alternative ground to deny class certification." (*Ibid.*) Generally, "a class action is proper where it provides small claimants with a method of obtaining redress and when numerous parties suffer injury of insufficient size to warrant individual action." (*Id.* at pp. 120–121, internal quotation marks omitted.)

Plaintiff contends a class action is superior to individual actions because of the large class size (over 7,000) and because of the limited number of core disputes. (Memorandum, pp. 19:22–20:19.) Plaintiff also argues there is a risk of inconsistency in damage awards arising from the same conduct, a result disfavored by courts. Loan Factory again asserts that the class action was really brought by its competitor and not to protect class interests. (Opposition, p. 24:3–25.)

In this case, class treatment is superior to the alternatives. The class includes at least 7,490 individuals, many of whom hold a claim worth little more than the $750 statutory minimum and a share of any disgorged profit. Because claims of this value are not economically feasible to pursue individually, Loan Factory's alleged conduct would likely go unreviewed without a class action. On the other hand, if many of the individual class members do decide to pursue the claims, this could drain judicial resources and potentially result in inconsistent rulings. The common questions (including commercial use, knowing use, consent, and a class-wide damages methodology) can be tried once for the entire class, conserving judicial resources and avoiding inconsistent results. The manageability concerns raised by Loan Factory that are not merits questions can be resolved through claim forms and a damages model.

Accordingly, the superiority requirement is satisfied.

V. Conclusion

For the reasons stated, the Court tentatively rules as follows:

1. Plaintiff's motion for class certification is GRANTED.
2. Pursuant to Code of Civil Procedure section 382, the Court certifies the following Class: "All California-licensed loan officers whose names and images were used by Loan Factory, Inc. as part of its 'Find a Loan Officer' webpage, without their consent."
3. Plaintiff Derek Daniel Bobadilla is appointed as representative of the Class.
4. Pursuant to California Rules of Court, rule 3.764, Johnson & Johnson, LLP and Pearson Warshaw, LLP are appointed co-lead Class Counsel.
5. Loan Factory's evidentiary objections to Plaintiff's class certification evidence, Nos. 1–20, are OVERRULED IN PART and SUSTAINED IN PART, as set forth above. Loan Factory's objections to the Supplemental Declaration of Bill Hartzer, Nos. 1–5, are OVERRULED as set forth above.
6. Counsel shall meet and confer, and within 30 days of the entry of the order, shall submit a proposed plan for class notice under California Rules of Court, rules 3.766 and 3.767, together with a proposed trial plan which addresses the damages theories and the management of any individualized issues.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 6

Case Name: *Magana v. CW Strong Restaurants California DHC LLC et al.*
Case No.: 24CV432482

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and Plaintiff's unopposed motion for preliminary approval of the settlement is before the Court. As discussed below, the Court GRANTS the motion for preliminary approval (subject to the conditions set forth herein), VACATES the Case Management Conference scheduled for June 3, 2026 at 2:30 p.m., and sets a final approval hearing for January 6, 2026 at 1:30 p.m. in Department 11.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc*. (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Similar to its review of class action settlements, a trial court must review and approve any settlement of an action filed under the Private Attorneys General Act ("PAGA"). (Lab. Code, § 2699, subd. (s)(2).) Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Discussion

A. Provisions of the Settlement

This case has been settled on behalf of the following Class:

> All current and former non-exempt employees that worked either directly or via a staffing agency for Defendant at any location in California at any time from March 5, 2020 to July 31, 2024.

(Declaration of Sepideh Ardestani in Support of Motion for Preliminary Approval ("Ardestani Decl."), ("Agreement"), ¶ 1.5.) The settlement is also made on behalf of PAGA "Aggrieved Employees," defined as all current and former non-exempt employees that worked either directly or via a staffing agency for Defendant at any location in California at any time from January 1, 2023 to July 31, 2024." (*Id.* at ¶ 1.4.)

Under the Agreement's terms, Defendant will pay a gross settlement amount of $400,000. (See Memorandum, pp. 4:21–5:3; Agreement, ¶ 3.) The gross settlement amount includes attorney fees of up to one third of the gross settlement amount ($133,333.33); litigation costs up to $20,000; a PAGA allocation of $40,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to Class Members on pro rata basis); an enhancement payment to Plaintiff of up to $10,000; and settlement administration costs up to $9,000. The Agreement provides that Phoenix Class Action Administration Solutions ("Phoenix") will serve as the neutral entity that will administer the settlement. (Agreement, ¶ 7.1; Declaration of Jodey Lawrence, Ex. B.) The Court appoints Phoenix as settlement administrator.

The Agreement further provides that funds from uncashed settlement checks will be tendered to the California State Controller Unclaimed Property Fund in the name of the Class Member. (Agreement, ¶ 4.4.3.) Code of Civil Procedure section 384 mandates that unclaimed or abandoned class members' funds be given to "nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent." In the Court's view, the Agreement's Unclaimed Funds provision at paragraph 4.4.3 does not comply with Code of Civil Procedure section 384. Therefore, prior to mailing of the Class Notice, the parties shall meet and confer to designate a *cy pres* beneficiary and amend the Class Notice accordingly.

In exchange for the settlement, the Class Members agree to release Defendant and related entities and persons from "all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaints, including … any and all claims involving any alleged failure to pay minimum wages, overtime wages, premium wages, reimbursement of business expenses, failure to issue accurately itemized wage statements, and failure to pay all wages upon separation of employment [during the Class Period]." (Agreement, ¶¶ 1.40, 1.42, 5.2.) Aggrieved Employees are deemed to release Defendant and related entities and persons from "all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaints and the PAGA Notice, including, failure to pay all minimum wages, overtime wages, premium wages, reimbursement of business expenses, failure to issue accurately itemized wage statements, and failure to pay all wages upon separation of employment during the PAGA Period." (*Id.* at ¶¶ 1.41, 1.42, 5.3.)

The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends the Agreement meets requisite factors and is within the range of reasonableness. (Motion, pp. 10:21–16:24.) Plaintiff's counsel states that the proposed settlement is the product of negotiations facilitated by Abe Melamed, Esq., in October 2025. (Ardestani Decl., ¶ 9.) The parties engaged in informal discovery, and Defendant produced payroll records, policies and handbooks, personnel files, as well as pay and time records for the putative class. (*Id.* at ¶ 8.) Plaintiff's counsel provides an analysis of the value of the claims. (*Id.* at ¶¶ 24–35.) According to this analysis, Defendant's total maximum exposure is

$2,606,250 for the class claims and over $3,600,000 for the PAGA claims, for a total combined potential exposure of approximately $6,206,250.

The gross settlement amount of $400,000 represents approximately 6.4 percent of Defendant's estimated total maximum exposure, which is within the general range of percentage recoveries that California courts have found to be reasonable. Plaintiff's counsel has sufficiently explained the rationale supporting the settlement amount, particularly in light of the risks inherent in seeking class certification and the Court's discretion to reduce PAGA penalties.

The Court has reviewed Plaintiff's written submissions and is satisfied that the settlement is fair and may be approved.

C. Service Award, Fees and Costs

Plaintiff will seek a service award of $10,000. Plaintiff has submitted a declaration describing her participation in this litigation. She estimates she has spent approximately 20 hours working on this case. The Court will determine the approved service award amount at the final approval hearing.

Class counsel will seek attorney fees of up to one-third of the gross settlement amount ($133,333.33). Prior to the final approval hearing, class counsel shall submit lodestar information (including hourly rates and hours worked) as well as evidence of actual litigation costs incurred and settlement administration costs.

D. Conditional Certification of Class

Plaintiff requests the class be conditionally certified for purposes of the settlement. California Code of Civil Procedure section 382 authorizes certification of a class "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court …"

Plaintiff states there are approximately 312 class members who can be identified from a review of Defendant's records. The Court finds that there are common questions regarding whether class members were subjected to unlawful conduct and that proposed class may be conditionally certified for settlement purposes.

E. Class Notice

California Rules of Court, rule 3.769, subdivision (f), provides, "If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement."

Here, the form of the notice is generally adequate subject to the modifications set forth below. It describes the lawsuit, explains the settlement, and states the settlement amounts, including attorney fees and payment to the named plaintiff. The notice informs class members that they may appear at the final fairness hearing to make an oral objection without filing a written objection.

As discussed above, the Court instructs the parties to meet and confer to designate a *cy pres* beneficiary in accordance with Code of Civil Procedure section 384 – and to amend the Class Notice accordingly – prior to its mailing. In addition, the following language regarding the final approval hearing shall be added to the notice:

> Class members may appear at the final approval hearing in person or remotely using the link for Department 11 (Afternoon Session), and should review the remote appearance instructions beforehand:
>
> https://santaclara.courts.ca.gov/online-services/remote-hearings
>
> Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

On the condition that the parties make the above modifications to the notice prior to its mailing, the notice is approved.

III. Conclusion

The Court GRANTS the motion for preliminary approval (subject to the conditions set forth above), VACATES the Case Management Conference scheduled for June 3, 2026 at 2:30 p.m., and sets a final approval hearing for January 6, 2026 at 1:30 p.m. in Department 11.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 7

Case Name: *Torres v. ABM Healthcare Support Services, Inc*
Case No.: 24CV450638

This is a putative class arising from alleged wage and hour violations. This action is related to a representative action filed in this Court between the same parties: Case No. 25CV470300. Counsel for plaintiff Marina Dekovic-Torres ("Counsel") has filed a motion to be relieved as counsel. The motion is unopposed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court ("Rule 3.1362"). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating "in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."[4] (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties "by personal service, electronic service, or mail." (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

> If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:
> (A) The service address is the current residence or business address of the client; or
> (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

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[4] Code of Civil Procedure section 284 provides, "The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other."

(Rule 3.1362(d).)

> The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel states: "This motion is made per California Rules of Professions Conduct, Rule 1.16(a)." (Counsel's Declaration, MC-052, ¶ 2.) Counsel further states they have served Plaintiff by mail at an address confirmed as current within the prior 30 days. (*Id.* at ¶ 3.)

Rule 1.16(a) provides: "Except as stated in paragraph (c), a lawyer shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if: [¶] (1) the lawyer knows or reasonably should know that the client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person; [¶] (2) the lawyer knows or reasonably should know that the representation will result in violation of these rules or of the State Bar Act; [¶] (3) the lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or [¶] (4) the client discharges the lawyer. On this ground as stated in counsel's declaration, the Court finds good cause to GRANT the motion.

The motion to be relieved as counsel is GRANTED.

Case Management Conference June 3, 2026 at 2:30 p.m. is VACATED.

Further Case Management Conference for identification of counsel for Plaintiff, and for consideration of dismissal absent appearance of new counsel, is set October 7, 2026 at 2:30 p.m. in Department 11.

Counsel must submit a revised proposed Order on Judicial Council form MC-053 within 5 court days, which correctly includes the next scheduled hearing date of October 7, 2026 and its purpose. The Order must be promptly served on Plaintiff.

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Calendar Line 8

Case Name: *Cadriel v. Bustamante et al.*
Case No.: 24CV454288

This is an employment law action brought by plaintiff Ricky Cadriel against defendants Wolfspeed, Inc., and Edgar Bustamante. This case is related to another action in this court between the same parties: Case No. 24CV430054. Counsel for Plaintiff ("Counsel") has filed a motion to be relieved as counsel. The motion is unopposed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court ("Rule 3.1362"). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating "in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."[5] (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties "by personal service, electronic service, or mail." (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

> If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:
> (A) The service address is the current residence or business address of the client; or
> (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

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[5] Code of Civil Procedure section 284 provides, "The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other."